

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ETHIOPIA

INTRODUCTION & FRAMEWORK

Ethiopia is building at extraordinary speed — dams and reservoirs, vast sugar and commercial-farming schemes, industrial parks, roads and railways, urban expansion around Addis Ababa and the regional cities, mines and energy projects. Much of it is state-driven, and much lands hardest on those least able to resist: smallholder farmers and pastoralists whose holding rights are extinguished, communities displaced with compensation that does not sustain them, rivers and wetlands altered, forests and grazing land cleared. When people ask whether anything can be done, the honest answer is: sometimes — but only if you use the specific machinery the law provides, and understand where that machinery stops. There is no single landmark community victory to point to, and a flagship national project is rarely stopped outright. But the machinery is real, and it was recently strengthened.

A community in Ethiopia facing a harmful project works with real, if constrained, tools, and they are legal and documentary above all. The foundation is the **2025 Environmental and Social Impact Assessment (ESIA) Proclamation**: a mandatory ESIA clearance certificate must be obtained from the **Environmental Protection Authority** or the relevant **Regional Environmental Agency** before a project proceeds, and the key licensing bodies — the Investment Commission, the trade ministry, the energy authority — must see a valid certificate before they license it, together with meaningful, documented public consultation. That pre-licence certificate is the single most important lever, and the moment before a project passes through it is when a community has the most power. The **Constitution** is the other great source: under **Article 40**, farmers and pastoralists hold protected use rights, are guaranteed against arbitrary eviction, and any public-purpose expropriation must bring advance compensation and resettlement, with full rights to their buildings and improvements; **Article 44** adds the right to a clean and healthy environment and to resettlement or compensation for the displaced. The **Expropriation Proclamation and the rural and urban land-administration laws** set the compensation-and-resettlement standards, and where a project is financed by the **World Bank, the African Development Bank, or another lender, that lender's safeguards are often the strongest standard of all**. And the **courts** can enforce these. But these tools have grave limits, and this guide states them plainly. The tilt is severe: all land is state-owned, which makes taking it easier; "public purpose" is defined broadly enough to include handing land to private commercial investors; and, critically, a landholder generally cannot appeal the *purpose* of an expropriation, only, at most, the compensation. Compensation is widely documented as inadequate to sustain life after eviction. Civic space is constrained, protest can be risky, and the largest projects are national priorities the government defends firmly, labelling opposition as politically motivated. So this is not a fight won by street mobilisation, and winning rarely means the outright cancellation of a flagship national project — more often higher and properly-paid compensation, genuine resettlement and rehabilitation instead of bare eviction, a project redesigned to reduce displacement or harm, or a proper assessment enforced. So aim for that better outcome, through the assessment, the compensation-and-resettlement claim, the lender's safeguards, and the courts — and protect everyone involved.

The Whole Strategy in One Idea

You rarely win here by stopping a flagship project or by street mobilisation, which can be risky. You win by using the machinery: catch the project before it obtains its mandatory ESIA certificate, hold the government

to the constitutional protections against arbitrary eviction and for advance compensation and resettlement, invoke the lender's safeguards where a financier is involved, and take it to the courts — aiming for a better outcome, and protecting everyone involved.

Be Honest About Which Fight You're In

Ethiopia is a constrained, state-driven setting, and honesty about that is the first discipline. This is not a fight you win by confrontation, nor usually by cancelling a national-priority project outright, nor by appealing the "purpose" of an expropriation, which the law largely forbids. It is a legal and documentary effort whose realistic prize is a better outcome — higher and properly-paid compensation, genuine resettlement, a redesign, a proper assessment. Aim at that winnable improvement, through the assessment, the compensation claim, the lender's safeguards, and the courts, and protect everyone involved.

HOW THE SYSTEM WORKS

Who Actually Decides

The system runs through several bodies. The **Environmental Protection Authority and the Regional Environmental Agencies** issue the mandatory ESIA clearance certificate. The **licensing bodies — the Investment Commission, the trade ministry, the energy authority** — cannot lawfully license a project without it. The **regional and local administrations** carry out expropriation and compensation. Where a project is financed, the **lender (World Bank, AfDB, or another)** sets safeguards. And the **courts** review the legality of it all. Many big projects are national priorities the government defends firmly. Map who decides — and where the machinery bites — before spending a week on it.

How a Project Moves — and Where You Jump In

A project in the covered categories must obtain its ESIA clearance certificate — with documented public consultation — before the licensing bodies can license it. That pre-licence moment is when your community has the most power: to demand real consultation, expose a deficient assessment, and press the constitutional and compensation standards. For displacement, the entry point is the expropriation and compensation process, and the lender's safeguards where one is involved. Enter before the certificate is issued and before the eviction is final.

Follow the Money and the Permissions

Follow the certificate: whether a valid ESIA clearance exists, whether real consultation occurred, and whether the licensing bodies checked it. Follow the land: whose holding rights are extinguished, what "public purpose" is claimed, and what compensation and resettlement are offered. Follow the finance: which lender backs the project and what safeguards it carries. The leverage lies in the ESIA gate, the constitutional and compensation standards, and the lender's safeguards.

Who's Supposed to Be Watching

The overseers are the EPA and the Regional Environmental Agencies, the licensing bodies bound by the certificate requirement, the courts, and — where a project is financed — the lender's safeguard and accountability mechanisms. The Constitution itself, through Articles 40 and 44, sets standards the government can be held to. These are the institutions a legal and documentary case engages.

QUICK REFERENCE: SUCCESS RATES

Opposition in Ethiopia is constrained but not pointless, and honesty requires stating both. The single most decisive move is **catching the project before it obtains its mandatory ESIA certificate, and attacking the assessment and the consultation**, because the certificate is a pre-licence gate the licensing bodies must respect, and real consultation is required by law. The ESIA gate is the sharpest tool; the constitutional protections and the compensation-and-resettlement standards the strongest ground for the displaced; the lender's safeguards often the most powerful external lever. What the tools deliver is usually a better outcome — higher compensation, genuine resettlement, a redesign, a proper assessment — rather than the cancellation of a flagship project. The legal and documentary routes work; the street is risky.

STEP 1: TARGET IDENTIFICATION

Ask five questions. **What is the harm?** — the displacement, the holding rights extinguished, the river or forest altered, the inadequate compensation. **Where is it in the process?** — before or after the ESIA certificate and the expropriation. **What is wrong with the assessment or consultation?** — missing, deficient, or without real consultation. **Is there a lender?** — whose safeguards may be the strongest standard. **What constitutional protection applies?** — the holding rights, the eviction guarantee, the advance compensation and resettlement. Pick the project caught before its certificate, or the displacement where the compensation-and-resettlement standard is clearly breached.

STEP 2: DOCUMENTATION

Build the case in layers, legal and documentary above all. **Layer one: baseline and holding rights** — the land, the holdings, the livelihoods, the environment as they are, and whose protected use rights are at stake. **Layer two: the project and the process** — whether an ESIA certificate was obtained, whether real consultation occurred, what "public purpose" is claimed, and what compensation and resettlement are offered against the legal standard. **Layer three: the finance and the impact** — the lender and its safeguards, and the human impact of displacement. A case built on the assessment's and consultation's failures, the constitutional protections, and the compensation standard is one the EPA, the courts, and the lender must engage — and it is safer, and far more effective here, than the street.

WHAT TO GATHER, AND WHERE TO FIND IT

Gather the **baseline record**: the holdings, livelihoods, water, forest, and grazing as they are, and the protected use rights. Gather the **process record**: the ESIA certificate (or its absence), the consultation record, the expropriation order, the "public purpose" claimed, the compensation and resettlement offered. Gather the **standard record**: the ESIA Proclamation, Articles 40 and 44, the Expropriation and land-administration laws, and any lender safeguards. Gather the **impact record**: the displacement, the livelihoods lost, the compensation's inadequacy. Much is obtainable through the official record, the licensing bodies, and the lender's disclosures.

STEP 3: BUILDING LOCAL OPPOSITION

In a constrained civic space, organising must be careful, collective, and legal rather than confrontational. Build around the **affected farmers and pastoralists**, whose holding rights and documented harm are the foundation; the **legal and technical experts** who can prepare the assessment and constitutional challenge; and any **community or professional bodies** with a legitimate stake. Keep the work within the legal and documentary frame; avoid street mobilisation, which can be risky and which the government labels politically

motivated; involve no one who could be endangered; and let the affected people's own protected rights carry the case.

STEP 4: LEGAL CHALLENGES

Set expectations honestly: the legal machinery is real and recently strengthened, though the tilt is severe, and it is the strongest and safest route here.

The ESIA Certificate Gate

The foundation is the **2025 ESIA Proclamation**: the mandatory pre-licence clearance certificate, the broadened social, economic, and cultural scope, and the required documented public consultation. A project without a valid certificate, or with a deficient assessment or consultation, cannot lawfully be licensed — the single most powerful legal move is to attack the certificate before it is issued.

The Constitutional and Compensation Protections

The **Constitution's Articles 40 and 44** protect holding rights, guarantee against arbitrary eviction, and require advance compensation and resettlement, and the **Expropriation and land-administration laws** set the compensation-and-resettlement standard. Where compensation is inadequate or resettlement absent, these are real standards to press — the strongest ground for the displaced, even where the purpose cannot be appealed.

The Lender's Safeguards and the Courts

Where a project is financed by the **World Bank, the AfDB, or another lender**, that lender's safeguards are often the strongest standard of all, with their own accountability mechanisms. And the **courts** can enforce the assessment, the constitutional protections, and the compensation standard. Pursued together — the ESIA gate, the constitutional and compensation protections, and the lender's safeguards and the courts — these levers win a better outcome, safely and lawfully.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Tailor the case to each body. **For the EPA or Regional Agency**: here is a project without a valid ESIA certificate or real consultation. **For the licensing bodies**: here is a project you cannot lawfully license without a valid certificate. **For the administration**: here is an eviction and compensation that breach the constitutional and legal standards. **For the lender**: here is a project that fails your safeguards. **For the courts**: here is the assessment, constitutional protection, or compensation standard breached. **The golden rule**: keep everything legal and documentary, ground every argument in the certificate, the Constitution, the compensation standard, or the lender's safeguards, and protect everyone involved — the machinery, not the street, is the tool here.

STEP 5: MEDIA STRATEGY

Media must be handled with great care in a constrained state. Favour the **legal and documentary record** over public mobilisation, and where attention is sought, frame it factually around the law: a certificate skipped, consultation denied, compensation below the constitutional standard — never as opposition to the state. Ethiopian and international coverage, and the lender's own scrutiny, can support a legal case, but open protest can be risky and is often labelled politically motivated. A few cautions govern everything: keep

it factual and law-grounded; never frame it as opposition to the state; protect everyone involved; and let the assessment failures, the constitutional protections, and the lender's safeguards carry the weight.

EMAILS & LETTERS

Keep every message factual, law-grounded, and protective of those involved.

8A — To the EPA or Regional Environmental Agency: identify the project and set out the missing certificate, deficient assessment, or denied consultation, and request proper ESIA.

8B — To a licensing body: note that it cannot lawfully license the project without a valid ESIA certificate.

8C — To the administration (expropriation): set out the constitutional protections and the compensation-and-resettlement standard the eviction breaches.

8D — To the lender's safeguard or accountability mechanism: document the safeguard failure and request review.

8E — To the courts (through counsel): establish the assessment, constitutional, or compensation breach.

8F — On consultation: document the absence of the meaningful, documented consultation the ESIA law requires.

8G — To a legal or technical expert: request the assessment critique, the constitutional filing, or the compensation analysis.

8H — To the affected community: set out the protected rights, the compensation standard, and the legal route, and organise collectively and safely.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

The first 48 hours: find out whether an ESIA certificate was obtained and whether real consultation occurred; document the holdings and livelihoods at stake; identify any lender. **The fastest-moving levers:** the ESIA certificate gate, the lender's safeguards, and the constitutional compensation-and-resettlement standard. **Emergency action:** if a project is proceeding without a valid certificate or an eviction without advance compensation, that is the strongest handle — document it and raise it with the EPA, the lender, and, through counsel, the courts. Throughout, keep it legal and documentary, avoid the street, and protect everyone.

WHEN THE SYSTEM IS TILTED

The field here is severely tilted: state-owned land, a broad "public purpose," a purpose that cannot be appealed, inadequate compensation, constrained civic space, and national-priority projects the government defends firmly. Recognise it, and lean on the levers the tilt cannot easily override — the mandatory ESIA certificate, the constitutional protections, the compensation-and-resettlement standard, and above all the lender's safeguards where a financier is involved. And accept, honestly, that a flagship project is rarely cancelled, while the outcome can be made better: higher compensation, genuine resettlement, a redesign, a proper assessment. The legal and documentary routes work where the street cannot.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Distinguish the ordinary tilt from capture — a certificate issued without a real assessment, "public purpose" invoked to hand land to a favoured investor, compensation pocketed or suppressed. Where capture appears, respond only through the **legal and documentary channels**: the ESIA record, the constitutional protections, the lender's safeguards and accountability mechanisms, and the courts. Never through open confrontation. **On safety**: Ethiopia's civic space is constrained, protest can be risky, and the government labels opposition to national-priority projects as politically motivated. So keep the work legal and documentary; avoid street mobilisation; protect everyone involved and any advocate whose position could be jeopardised; frame everything factually around the law, never as opposition to the state. Safety and the legal frame are the first rules.

INTEGRATION & TIMELINE

The steps run in parallel, legal and documentary throughout. The baseline and process documentation feed the ESIA challenge, the constitutional and compensation claim, and the lender's safeguard case at once; the affected people's protected rights anchor it all; any media stays factual and law-grounded. A rough timeline: **weeks one to four**, document the holdings and the assessment's and consultation's failures, and file with the EPA and any lender; **months two to six**, pursue the constitutional and compensation standards, the lender's safeguards, and — through counsel — the courts; **beyond**, secure the better outcome — higher compensation, resettlement, redesign, or a proper assessment — and hold it. The core discipline: legal and documentary, aimed at a better outcome, and absolute in protecting everyone.

FINAL ASSESSMENT

Ethiopia is a constrained, state-driven ground, and this guide does not pretend otherwise. It does not claim that street mobilisation is safe, or that a flagship national project can usually be stopped, or that the purpose of an expropriation can be appealed — none of that is true, and the tilt is severe. What it claims is precise and real: that the 2025 ESIA Proclamation makes a clearance certificate and documented consultation a mandatory precondition the licensing bodies must respect; that the Constitution protects holding rights, guarantees against arbitrary eviction, and requires advance compensation and resettlement; that the Expropriation and land laws set a compensation standard; that where a project is financed, the lender's safeguards are often the strongest standard of all; and that the courts can enforce these. The tools are legal and documentary, and the realistic prize is a better outcome — higher and properly-paid compensation, genuine resettlement, a redesign, a proper assessment — rather than a stopped flagship project. In a constrained state with a recently strengthened assessment law, real constitutional protections, and lender safeguards, that legal, documentary, careful work — not the risky street — is not a lesser ambition. It is the responsible and effective one.